

‘The person who murdered my mother has been released.
That tells me something is very, very wrong in California.’

— MINA MOYNEHAN



MINA MOYNEHAN says she’s afraid of Paul Carl Tomasini and that caregivers who will be in charge of him should be too. GINA FERAZZI Los Angeles Times

When cancer sets a killer free

At a hearing in the summer, San Diego County Superior Court Judge John Thompson wrestled with the decision before him.

“There are very few things that I find now after sitting on the bench for 36 years that are difficult. This is one of them,” he said, according to a June 26 court transcript. “Every fiber of my being tells me I should deny this request.”

At question was the fate of Paul Carl Tomasini, who was convicted of brutally murdering Mary Shojai in 2012. According to prosecutors, Tomasini bludgeoned 66-year-old Shojai, a disability rights advocate, at least 17 times with a mallet in her San Diego home after she broke off their romantic relationship that developed at church.

Twelve years later, Tomasini was eligible for early release under California’s newest compassionate release law because of a prostate cancer diagnosis. According to court documents, 78-year-old Tomasini’s cancer had metastasized,

Mary Shojai’s daughter wants to change the state law that let her murderer out of prison

By Mackenzie Mays

and he is facing “an end-of-life trajectory.” He now resides in a healthcare facility that offers palliative care, paid for by taxpayers.

Tomasini is among the first to benefit from a law signed by Gov. Gavin Newsom that went into effect in 2023, designed to allow more people who are seriously ill to live out their final days outside a prison cell as long as they are not deemed a threat to the public.

The legislation is an example of California’s progressive criminal justice reform laws meant to end mass incarceration and give offenders a chance at redemption, a hallmark of the Democratic-led state that has recently been called into question. Voters in November repealed part of a decade-old law that softened some criminal penalties and ousted two progressive district attorneys who championed such reforms.

For people such as Mina Moynehan, it has little to do with politics. She grew up in a family of “deep blue” Democrats [See **Freed**, A7]

Battle looms over H-1B visas

Tech giants say highly skilled foreign workers are vital. If Trump supports the program, he will defy his base.

By Don Lee and Queenie Wong

WASHINGTON — Of all the rich and powerful people cozying up to President-elect Donald Trump, few have rushed to Mar-a-Lago faster than the crowned heads of big tech, including California’s own chiefs of Google and Meta.

And few have a stronger motive to curry Trump’s favor than Silicon Valley: The fate of the H-1B visa program that permits foreign-born computer scientists, engineers and other highly skilled workers to migrate to the United States hangs in the balance.

Support for retaining H-1B from Elon Musk, the incoming president’s new closest associate, has stirred rage through much of Trump’s MAGA base, which is against immigration in almost any form. But keeping the pipeline open for tech and other skilled workers is seen by many business lead-

[See **H-1B visas**, A10]

After carnage, familiar Trump ire

President-elect rails against immigrants after U.S. citizen kills 14 in New Orleans.

By James Rainey and Rachel Uranga

President-elect Donald Trump ushered in the new year in familiar fashion — using a news event in an attempt to build his case for tougher enforcement of the nation’s southern border, a change he said is crucial to stop violent criminals from flooding into the U.S.

After a pickup truck driver mowed down dozens of people in New Orleans, killing 14, in the first hours of New Year’s Day, Trump quickly issued a statement that implied the perpetrator had come into the country illegally.

He did not correct that assertion, and even escalated his rhetoric against the “open border” with Mexico, after it soon became clear that an initial news report that depicted the attacker as an immigrant was wrong.

The driver, Shamsud-Din Jabbar, has been identified as an American raised in Beaumont, Texas, who served in the Army and who

[See **Immigrants**, A8]

Will California reclaim this surfing world record?

A monster ridden at Mavericks could mark a new high. But measuring a wave isn’t easy.

By Jack Dolan

As a friend on a jet ski towed Alo Slebir into a towering gray monster of a wave near Half Moon Bay on Christmas Eve, the Santa Cruz surfer had no idea he might be riding into the record books.

But a jaw-dropping photo of Slebir’s relatively tiny form racing down a collapsing mountain of ice-cold Pacific Ocean water has gone viral, with knowledgeable big-wave surfers around the globe speculating that the wave was over 100 feet tall and that Slebir, at 23, has set a world record.

But did he? For all of their ferocity, big waves are among the most ephemeral phenomena in all of sports — they’re almost impossible to precisely rank.

“You can measure Mt. Everest ev-



ALO SLEBIR on what may be a 100-foot wave near Half Moon Bay, Calif. Confirming that will mean careful calculation and consensus. FRANK QUIRARTE

ery day of the week for 100 years, it never moves,” said Bill Sharp, who has spent decades orchestrating the world’s most rigorous big-wave surfing awards. “But even the biggest wave lasts only for a few seconds, and then it’s gone forever.”

So anointing a new world record holder isn’t like handing someone a gold medal after winning an Olympic event, Sharp said. It’s more like “naming a new pope.”

Once a year, Sharp, a former editor of Surfing magazine, and a “conclave of wise men and women” get together in a closed room and study photos and videos submitted by surfers from around the world in an effort to determine who was lucky — or crazy — enough to ride the biggest wave captured on film.

Submissions can come from anywhere, but the most common spots [See **Mavericks**, A16]

‘Exodus’ from California is over
Population growth is meager and has caveats, Mark Barabak writes. **PERSPECTIVES, A2**

Carter’s long public goodbye
State funeral for the 39th president begins in Plains, Ga., and travels to Atlanta. **NATION, A4**

Joyful things to do this year
Your month-by-month guide to road trips, hikes, blooms, wellness and more. **WEEKEND, L1**

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